

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 27, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

3	Bear Capital partners, Inc. v. Smith 2025-01508678 Demurrer to Cross Complaint CMC	Plaintiffs/Cross-Defendants' Demurrer to the Cross-Complaint is MOOT. Plaintiffs/Cross-Defendants Bear Capital Partners, Inc., in its Capacity as the Manager of 2330 E. 15th St., LLC; or alternatively, in its Derivative Capacity on behalf of 2330 E. 15th St., LLC; and Ronald L. Meer move for an order sustaining their demurrer to the cross-complaint of Defendants/Cross Complainants Michael Smith, John Kling and 2003 Newport, LLC. In lieu of filing an opposition, Defendants/Cross Complainants timely filed a first amended cross-complaint on 6/4/26. (See Code Civ. Proc., §§ 472, 1005.) The demurrer is moot and therefore taken off-calendar.
4	Morgan v. Apex Heating and Air, LLC. 2025-01511413	Plaintiffs Steve Morgan and Sonia Tavakoli's motion for leave to file a First Amended Complaint is CONTINUED. The Court shall select a new date on 7/27/26. Plaintiffs have not submitted proof of service showing that the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, Rule